SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 05/04/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC19-02313
CASE NAME: TAIT VS. COMMONWEALTH LAND TITLE INS. CO.
JURY TRIAL 7 DAYS
FILED BY:
****TENTATIVE RULING:****

Parties to appear for court trial.

2. 10:00 AM CASE NUMBER: C24-01419
CASE NAME: MICHAEL HAUS VS. ROBERT RICE
JURY TRIAL
FILED BY:
****TENTATIVE RULING:****

This matter is set for jury trial on May 3, 2027 pursuant to the Court’s Order entered March 20, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C24-00425
CASE NAME: M. L. S. BUILDER INC. VS. SEANDAN NG
***MOTION/PETITION TO COMPEL ARBITRATION AND STAY PROCEEDING NOTICE**
FILED BY: M. L. S. BUILDER INC.
****TENTATIVE RULING:****

Matter continued to June 22, 2026 pursuant to stipulation of the parties to continue hearing and Order entered April 21, 2026.

4. 9:00 AM CASE NUMBER: C24-02592
CASE NAME: ROWENA DAVIS VS. THE STONEBROOK CONVALESCENT CENTER, INC
***HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AS INTERESTED PERSON**
FILED BY: DAVIS, ROWENA
****TENTATIVE RULING:****

Plaintiff Namonda West ("Ms. West") filed a motion "for an order granting her authority to maintain the survival causes of action on behalf of Rowena Davis, deceased…" (the "Motion"). The Motion was set for hearing on May 4, 2026. The motion is unopposed.

Analysis

After the filing of the Motion, an ex parte application was brought seeking the same relief. That relief was granted by the Court and an Order entered December 29, 2025. For some reason, this Motion was not withdrawn.

Disposition

The Court finds and rules as follows:

1. The Motion is DENIED as MOOT.
2. The Court shall enter the order after hearing.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET ONE**
FILED BY:
****TENTATIVE RULING:****

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel

Further Responses was set for hearing on November 3, 2025.

Background

The Motion to Compel Further Responses relates to four separate discovery requests. Plaintiff served Defendant with (1) a Form Interrogatories, Set One, (2) Special Interrogatories, Set One, (3) Requests for Production, Set One, and (4) Requests for Admission, Set One. See Declaration of Jason Horst filed July 21, 2025 ("Horst Decl."), ¶3 and **Exhibits 1-4** thereto. Collectively, these requests are referred to herein as the "Discovery Requests."

No responses were received before the deadline. Horst Decl., ¶5. Despite meet and confer efforts, no responses were received before Plaintiff filed an earlier motion to compel on May 15, 2025.

Responses were finally served on June 3, 2025. Horst Decl., ¶5.

The earlier motion to compel was denied as moot given that responses had been served in the interim. See Order entered September 2, 2025.

However, this motion remained pending based on the contention that Defendant's responses were inadequate.

At the hearing on the Motion to Compel Further Responses on November 4, 2025,* the Court ordered the parties to meet and confer and file a Joint Statement no longer than 10 pages by December 1, 2025 (the "Joint Statement") and continued the hearing to December 15, 2026.

At the Case Management Conference (CMC) on November 19, 2025, the Motion to Compel Further Responses was continued from December 15, 2025 to March 9, 2026. The Court was informed that the parties had made progress towards settlement and the parties agreed to continue the discovery motion. See Minute Order dated November 19, 2026.

A Reply was filed on March 2, 2026. Among other things, plaintiff observes that no settlement has yet been reached.

*This date was specially set by the Court's published tentative ruling.

On March 10, 2026, the Court issued a further order following the March 9, 2026 hearing. See Order entered March 10, 2026 (the "March 10, 2026 Order"). The March 10, 2026 Order made certain findings, including regarding the wavier of objections. However, the parties were ordered to comply with the prior order to prepare and submit the Joint Statement as ordered on November 4, 2025.

A Joint Statement was filed on April 20, 2026 (the "Joint Statement").

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

Notwithstanding further meet and confer discussion, the parties' Joint Statement does not reflect any agreements for supplemental discovery responses. The Court has considered Defendant's statements and arguments in the Joint Statement. None of those assertions adequately addresses the defects in the responses at issue or justifies the non-compliance.

Form Interrogatories, Set One, Nos. 2.1, 2.2, 2.7, 2.11, 4.0, 12.1, 12.2, 12.3, 12.4 and 17.1. The Court finds the responses to these requests are inadequate in that the responses are evasive or incomplete, and/or improperly interpose objections despite the waiver of objections.

Special Interrogatories, Set One, Nos. 3, 5, 6, 8, 9, 11, 12, 14, 15, 17, 18, 20, 21 and 22. The Court finds the responses to these requests are inadequate in that the responses are evasive or incomplete, and/or improperly interpose objections despite the waiver of objections.

Requests for Production, Set One, Nos. 1, 2, 3, 4, 5, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27 and 28. The Court finds the responses to these requests are inadequate in that the statements of compliance are incomplete, not code compliant as written, and/or improperly interpose objections despite the waiver of objections. Defendant has not supplemented any responses despite the Court's admonition in its March 10, 2026 order to review the provisions of Code of Civil Procedure governing written responses to document inspection demands.

Requests for Production, Set One, Nos. 6, 7, 8, 9 and 10. The Court does not find good cause to compel further responses to these requests and declines to order further responses to these requests.

Requests for Admission, Set One, No. 11, 12, 13, 14, 15 and 17. The Court finds the responses to these requests are inadequate in that the responses interpose objections despite the waiver of objections.

The responding party is ordered to make further responses to the subject discovery requests, as set forth above. The further responses shall be as complete and straightforward as the information reasonably available to the responding party permits and shall not contain waived objections.

<u>Sanctions</u>

In its prior March 10, 2026 Order, the Court made the following findings:

> **1. Initial Failure to Timely Respond.** Defendant's failure to respond to the Discovery Requests even after the deadline to do so had passed and demands for responses were made constituted failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d). See Horst Decl., ¶6 *et seq*.
>
> **2. Failure to Meet and Confer in Good Faith.** Defendant's failure to respond to meet and confer efforts regarding the Discovery Requests after the late responses were finally served constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Horst Decl., ¶¶10-13.

In addition, the Court finds Defendant's failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil

Procedure section 2023.010(d).

The Court finds that all of the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and in unsuccessfully opposing this motion, the Court finds that Defendant did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of the sanction unjust.

Defendant shall pay monetary sanctions to Plaintiff in the amount of **$3,960.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute.

<u>Disposition</u>

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is GRANTED.
2. Defendant shall serve verified further amended responses to the Discovery Requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Monetary Sanctions shall be paid by Defendant to Plaintiff within **thirty (30) calendar days** of notice of entry of this order.
4. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C25-00973
CASE NAME: JOHN HURTADO VS. WOODBURY LAFAYETTE COMMUNITY ASSOCIATION,
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: WOODBURY LAFAYETTE COMMUNITY ASSOCIATION,
<u>*TENTATIVE RULING:*</u>

Defendants Woodbury Lafayette Community Association and Sharon Collins, Inc. ("Defendants") filed a Demurrer on December 15, 2025 to the Second Amended Complaint filed by plaintiffs November 12, 2025 (the "Demurrer"). The Demurrer was set for hearing on May 4, 2026.

<u>Background</u>

Defendants' Demurrer contends that the third, fourth, fifth, sixth, seventh, eighth and ninth causes of action fail to state facts sufficient to constitute causes of action. Defendants also demur to the first, second and ninth causes of action on the grounds that Plaintiffs lack standing. Defendants also demur to various of the causes of action on other grounds, including being barred by the statute of limitations and being duplicative.

Analysis

The Demurrer is unopposed.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is DENIED.
3. Moving party to submit a revised proposed form of order.

7. 9:00 AM CASE NUMBER: C25-01457
CASE NAME: ADELE HARRISON VS. ALAMEDA-CONTRA COSTA TRANSIT DISTRICT,
***HEARING ON MOTION IN RE: SEEK MANDATORY RELIEF FROM THE COURT'S ORDER GRANTING DEFENDANT'S DEMURRER**
FILED BY: HARRISON, ADELE
TENTATIVE RULING:

Introduction

Before the Court is Defendant's Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's ("AC Transit" or " Defendant") demurrer without leave to amend, pursuant to Code of Civil Procedure section 473(b), on grounds of attorney mistake and neglect based on Plaintiff's counsel's mis-calendaring of the Government Code section 945.6(a)(1) filing deadline, which led to the late filing of the Plaintiff's complaint and the Court's subsequent order sustaining the Defendant's demurrer. The motion seeks to vacate the order sustaining the demurrer and to permit the action to proceed on the merits.

For the reasons stated below**, the Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's ("AC Transit") Demurrer without leave to amend is DENIED.**

Procedural Background

Date	**Event**
May 22, 2024	Subject Incident
June 11, 2024	Plaintiff presents Claim for Damages to Defendant AC Transit.
June 21, 2024	Defendant AC Transit Sends Plaintiff Notice of Insufficient Clain
July 1, 2024	Plaintiff presents an Amended Claim for Damages to Defendan AC Transit.
July 17, 2024	Defendant AC Transit rejects Plaintiff's Claim for Damages and notifies Plaintiff that she has six months to file a court action oı

January 17, 2025	Last day for Plaintiff to file court action on her claim.
March 17, 2025	Plaintiff petitions Alameda County Superior Court for Leave to File Late Action
May 22, 2025	Alameda County Superior Court denies Plaintiff's Petition for Leave to File Late Action
May 22, 2025	Plaintiff Files Complaint for Damages in Contra Costa County Superior Court
June 2, 2025	Plaintiff serves Defendant AC Transit with Summons and Complaint

<u>Legal Standard for Code Civ. Proc. § 473</u>

It has long been established that "[the policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (*Weitz v. Yankosky* (1966) 63 Cal.2d 849, 854-855.) Thus, '"the provisions of section 473 … are to be liberally construed and sound policy favors the determination of actions on their merits." [Citation.]' [Citation.] '[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.'" (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 212.) "'Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.] In such situations "very slight evidence will be required to justify a court in setting aside the default." [Citations.]'" (*Fasuyi v. Permatex, Inc*. (2008) 167 Cal.App.4th 681, 695.)

Movant seeks to set aside the default judgment pursuant to Code of Civil Procedure section 473 (b). "The statue includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

When moving to set aside a default under Code of Civil Procedure section 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Mandatory Provision Attorney Fault

The 'mandatory' provision that relates to times when an attorney admits fault in causing the default is provided for in the later portion of the statute:

> Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in

> proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

In accordance with the mandatory provision of section 473 subdivision (b), the court is required to set aside a default/default judgment "whenever an application for relief … is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc. § 473 (b).) The statute, "does not provide for any exception to this requirement," even if the client claims that the attorney abandoned them. (*Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC* (2013) 219 Cal.App.4th 1086, 1092; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) ¶5294a [noting "when the client is unable to obtain an affidavit because the attorney has abandoned the client, mandatory relief is unavailable."].) In "the case of any attorney's abandonment of a client, the injured client's remedy is to bring a motion for *discretionary* relief under section 473 … [or] bring an action against its attorney." (*Id.* at 1093.)

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any … resulting default [or default judgment] … entered against his or her client…." (Code Civ. Proc. § 473, subd. (b).)

<u>Analysis</u>

Code of Civil Procedure Section 473 Cannot Circumvent the Statute of Limitations

Government Code section 945.6(a)(1) requires a plaintiff to file suit within six months after a public entity provides written notice of claim rejection. This limitations period is mandatory and jurisdictional. (*City of Salinas v. Workers' Comp. Appeals Bd.* (2025) 113 Cal.App.5th 801, 815.) When a party misses a jurisdiction deadline, the court lacks authority to proceed and must dismiss the action, regardless of any equitable considerations that might favor a decision on the merits. (Id. at 872; *Law Finance Group, LLC v. Key* (2023) 14 Cal.5th 932, 950).

Relief under Code of Civil Procedure section 473(b) does not apply to failures to comply with statutes of limitations and cannot be used to revive an action filed after the limitations period has expired. (*Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 933.) In *Castro*, the plaintiff filed suit 19 days after the expiration of the six-month period following claim rejection and sought relief under Code of Civil Procedure section 473 based on counsel's calendaring error. (Id at 929.) The Court of Appeal held that C.C.P § 473 relief was unavailable, emphasizing that permitting such relief would undermine the purpose of statutes of limitations and create an impermissible extension of jurisdictional deadlines. (*Castro*, supra, 47 Cal.App.4th at 929–931.)

Castro is directly on point to these procedural facts. In *Castro*, the Appellate Court upheld the trial court's ruling to sustain a demurrer without leave to amend for Plaintiff's failure to comply with the statute of limitation pursuant to Government Code section 945.6(a)(1). Plaintiff attempts to improperly invoke Code of Civil Procedure section 473(b) to obtain relief from her failure to file her complaint within the mandatory six-month limitations period set forth in Government Code section 945.6(a)(1).

Plaintiff's Sole Cited Case Does Not Apply

The only case cited in Plaintiff's moving papers is inapposite. In *Shayan*, the Court of Appeal held that relief under section 473, based on an attorney's mistake, did not apply to a judgment entered after trial on the merits, and had not been a default, a default judgment, or a dismissal. (*Shayan v. Spine Care & Orthopedic Physicians* (2020) 44 Cal.App.5th 167, 169.)

Unlike the appellant in *Shayan*, who filed a timely complaint but sought discretionary relief after an adverse judgment after a trial on the merits, Plaintiff here filed an untimely complaint from the outset. Nothing in *Shayan* suggests that Code of Civil Procedure section 473(b) can revive an action that was jurisdictionally time-barred at its inception.

Conclusion

For the reasons analyzed above, **the Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's Demurrer without leave to amend is DENIED.**

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES FOR REQUEST FOR PRODUCTION OF DOCUMENTS AND MONETARY SANCTIONS**
FILED BY: MALBOUBI, RASSOUL
****TENTATIVE RULING:****

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Responses on February 19, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on May 4, 2026. The motion is opposed.

Background

Plaintiff seeks further responses to discovery requests propounded on defendant City of Richmond (the "City"), described as "Plaintiff's Amended and Streamlined Requests for Production of Documents (Set Three), served on January 5, 2026." See Motion to Compel Further Responses, p. 2.

As with another prior motion to compel, Plaintiff failed to file a Separate Statement pursuant to the requirements of Rule 3.1345 of the California Rules of Court ("CRC") with the moving papers.

Plaintiff belated filed a "SUPPLEMENTAL SEPARATE STATEMENT" in support of the Motion to Compel Further Responses on March 9, 2026 (the "Separate Statement").

Analysis

As noted above, Plaintiff failed to file a Separate Statement in support of the Motion to Compel Further Responses with the moving papers. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5. CRC 3.1345 provides that "Any motion involving the content of a discovery request or the responses to such a request **must be accompanied by** a separate statement…" CRC 3.1345(a) (emphasis added).

Even if the Court were inclined to consider the belatedly filed Separate Statement, it fails to conform to the requirements of the CRC. There are very specific requirements for the formatting and content of a Separate Statement. See CRC 3.1345(c) ("A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. **The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response**.") (emphasis added). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id*. at (c)(1)-(2).

The belated Separate Statement fails to comply with the requirements of CRC 3.1345. Among other things, the proffered Separate Statement fails to set forth the full response verbatim. Rather, the moving party's Separate Statement purports to summarize the nature and extent of the response.

The opposing party proffered the actual responses and it is readily apparent that the moving party's Separate Statement does not recite the responses verbatim, as required by the CRC. See Declaration of Kevin D. Siegel filed April 21, 2026, ¶5 and **Exhibit C** thereto. For this reason alone, the motion is procedurally defective.

It is also apparent to the Court that the moving party's meet and confer efforts were woefully inadequate. However, the Court need not address such matters further in light of the blatant procedural non-compliance.

<u>Sanctions</u>

The moving party persisted in prosecuting the Motion to Compel Further Responses without substantial justification based upon procedurally defective moving papers.

The Court finds that the moving party's conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions (the "Monetary Sanctions").

Plaintiff shall pay monetary sanctions to Defendant in the amount of **$3,065.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Defendant as a result of the foregoing conduct by Plaintiff. In fixing said amount, the Court has considered all evidence in the record before the Court, including the declaration of the opposing party. The Court does not find any circumstances that make the imposition of such sanctions unjust.

<u>Disposition</u>

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is DENIED.
2. The Monetary Sanctions shall be paid by Plaintiff to Defendant within **thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP
***HEARING ON MOTION IN RE: ORDER COMPELLING INDEPENDENT FORENSIC ACCOUNTING AND STAYING ENFORCEMENT PENDING REVIEW**
FILED BY:
****TENTATIVE RULING:****

Plaintiff Kranti Kapre ("Plaintiff") filed a Motion for Order Compelling Independent Forensic Accounting and Staying Enforcement Pending Review on December 15, 2025 (the "Motion"). The Motion was set for hearing on May 4, 2026.

Background

Defendant Clear Recon Corp ("Defendant") appeared in this action by way of a Demurrer filed February 17, 2026 and set for hearing on June 29, 2026.

No Proof of Service was filed with the moving papers. Nor does not appear that Defendant was served with the Motion after Defendant's appearance in the case.

Analysis

Plaintiff has failed to properly serve the Motion on the opposing party. For that reason alone, the Motion is procedurally defective.

Even if it had been properly served, no basis has been shown for the Court to order a "court-supervised forensic accounting." There is no cause of action pled in the operative complaint for an accounting nor any prayer for such relief in that pleading. No other authority has been articulated for the right to a "court-supervised forensic accounting" at this stage of the proceedings.

The other relief sought is unclear and no basis has been shown for such relief. While difficult to parse, the Motion also appears to reference seeking to amend the complaint. The Motion is procedurally defective to the extent it is intended to be some sort of request for leave to amend.

To the extent judicial notice was requested in connection with the Motion, it is DENIED.

Disposition

The Court finds and orders as follows:

1. The Motion is DENIED.
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-02705
CASE NAME: TRACY PITTS VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: SANCTIONS AGAINST PLAINTIFF AND HER COUNSEL CCP 128.7**
FILED BY: CONTRA COSTA COUNTY
****TENTATIVE RULING:****

Defendant Contra Costa County ("Defendant") brings a motion for sanctions ("Motion") pursuant to Code of Civil Procedure section 128.7, against Plaintiff Tracy Pitts ("Pitts") and Plaintiff's counsel of record, Nicolis Peters ("Counsel" together with Pitts, "Plaintiff"), for the amount of $5,250.

Defendant asserts that Plaintiff and Counsel are maintaining an action against Defendant without factual or legal merit and are pursuing the lawsuit against Defendant in bad faith.

For the reasons set forth below, the motion for sanctions is DENIED.

Background

Plaintiff Pitts alleges that on October 7, 2024, in the course and scope of her employment with AC Transit, she was making a stop at the bus area at the end of Campus Drive. (Complaint, p. 4.) She exited her vehicle and fell down on deteriorated concrete, injuring her right ankle and knees. (*Ibid*.) Plaintiff filed a claim with Defendant regarding the incident on April 2, 2025. (Monika L. Cooper Decl. ISO Motion ["Cooper Decl."], ¶ 2, Exh. A.) Defendant rejected the claim on May 13, 2025. (*Ibid*.) On September 19, 2025, Plaintiff sued Contra Costa City College, the City of San Pablo, and Contra Costa County for premises liability in relation to the fall. (Complaint, pp. 1-4.)

On Monday, November 3, 2025, Defendant reached out to Plaintiff to informally request dismissal of the lawsuit; stating, "Contra Costa County does not own, control, or maintain the area at issue in your lawsuit. I am attaching a clip of the website showing that Campus Drive, depending on the area, could be in either the City of Richmond or the City of San Pablo. It is <u>not</u>, however, in unincorporated Contra Costa County." Defendant attached a screen clipping of a website showing Campus Drive and Defendant's view of what the city limit boundary lines reflected. (Cooper Decl., ¶ 3, Exh. B.) After no response, Defendant emailed again on Friday, November 7, 2025, saying, "I'm following up on my email from Monday as I did not hear back from you. Are you intending to dismiss the County?" (*Id*., at ¶ 4, Exh. C.) That same day, Plaintiff responded that "I am reviewing the file and will have an answer shortly." (*Id*., at ¶ 5, Exh. D.)

Subsequent to this, on November 14, 21, 24, and 25th, Defendant sent follow-up emails requesting dismissal, and at times stating that the action against the county was frivolous and in bad faith. (Cooper Decl., ¶ 7, Exh. E.) The final email stated, "Due to your failure to dismiss the County, or even engage in a professional discussion, we will file an answer and serve you with our motion for sanctions tomorrow." (*Ibid*.)

On November 26, 2025, Defendant served a copy of the instant Motion on Plaintiff. (Proof of Service Re Defendant's Motion for Sanctions, pp. 2-3; Opposition, p. 4:19-21.) The 21-day safe harbor was satisfied on December 17, 2025. At this time, Defendant again reached out to Plaintiff to request a dismissal and provide a brief extension of time until December 19, 2025, at noon, before filing the motion for sanctions. (Supp. Cooper Decl., ¶ 3, Exh. A.) On December 19, 2025, Plaintiff reached out and stated:

> If you file your motion I will seek sanction[s] through an opposition. You seem to be trying to bring a motion for sanctions that you will prevails [*sic*] on a motion for summary judgement. It would be improper.
>
> Currently, nobody has accepted responsibility. I informed you that l am waiting for the other sides to answer. l have conferred with the City, but not the college.

> You can wait until the parties are answered and I have discovery stating the County is not involved in the maintenance or repairs of the area. Or you can file your motion, which I will then also seek sections, and start with my discovery against the County first, instead of the College and City.
>
> You and everyone else [are] claiming they are not liable so far.

(Supp. Cooper Decl., ¶ 3, Exh. A.) Defendant responded one final time to say that unless Plaintiff dismissed Defendant with prejudice by noon on Monday, December 22, 2025, Defendant will file its sanctions motion. (*Ibid*.)

Legal Standard

Code of Civil Procedure section 128.7 imposes standards for counsel presenting a pleading to the court. Counsel presenting the pleading certifies "to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances," that the pleading is not presented for an improper purpose, such as harassment or delay, and that there is a basis in fact and in existing law, or at least a "nonfrivolous argument for the extension, modification, or reversal of existing law" for the positions asserted. (Code Civ. Proc., § 128.7, subd. (b)(1)-(3).)

"[T]o obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.' " (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205.) Even if the Court finds a violation of Code of Civil Procedure section 128.7, subdivision (b), "Section 128.7, subdivision (c) does not require the imposition of monetary sanctions upon the finding of a violation of section 128.7, subdivision (b); rather, it gives the trial court discretion to impose sanctions based on such a finding." (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 422.) The Court's determination whether to award sanctions is reviewed for abuse of discretion, and will not be overturned unless the wrong committed was so serious it amounts to " 'a manifest miscarriage of justice.' [Citations, internal quotation marks omitted.]" (*Id.*, [quoting *Sabek, Inc. v. Engelhard Corp.* (1998) 65 Cal.App.4th 992, 1001].)

Analysis

Defendant argues that there can be no dispute that it has no place in this dangerous condition case. (MPA ISO Motion, p. 1.) Defendant "has repeatedly told plaintiff's counsel that it does not own, control, or maintain the area where plaintiff allegedly fell. Plaintiff and her counsel are therefore maintaining this action against the County without any valid legal or factual basis." (*Id*., at pp. 1-2.) Defendant asserts that Plaintiff's lawsuit against it is frivolous, has no legal or factual merit, and was presented for an improper purpose, such as to harass. (*Id*., at p. 4:5-20.) Defendant argues that "Plaintiff and her counsel's maintenance of this case against the County in the absence of any evidence of the County's role in plaintiff's injuries—and in the face of direct and unequivocal evidence showing an absence of liability—renders plaintiff's claims against the County factually and legally frivolous." (*Id*., at p. 4:23-26.) Defendant asks for the Court to sanction Plaintiff $5,250. (*Id*., at p. 7.)

Plaintiff argues that the Court should deny the Motion for three independent reasons: (1) the claims against Defendant are neither factually nor legally frivolous. At the time the complaint was filed, genuine ambiguity existed regarding property ownership and jurisdiction at the Campus Drive Bus Stop at Contra Costa College; (2) Defendant failed to comply with the strict compliance necessary for the safe harbor requirement; and (3) the requested fee award is excessive and inadequately supported. Plaintiff also distinguished a case relied on heavily by Plaintiff, *Carroll v. Cal*. (1990) 217 Cal.App.3d 134.

On reply, Defendant argues that the safe harbor provision requirements have been met and that sanctions are warranted because "Plaintiff continued to pursue this action against the County despite direct evidence that the location of the subject incident was not within the County's jurisdiction." (Reply, p. 4.) Defendant contests Plaintiff's attempt to distinguish *Carroll* due to the developed discovery record in that case by saying that the court in Carroll held that "At the minimum, this term requires that the Plaintiffs' attorney have some articulable fact or facts to conclude that a particular person or entity should be initially included in the lawsuit as a party-defendant." (*Carroll v. Cal*. (1990) 217 Cal.App.3d 134, 142.)

First, the Court finds that Defendant satisfied the safe harbor provision. (Proof of Service Re Defendant's Motion for Sanctions, pp. 2-3; Opposition, p. 4:19-21.)

Second, in *Carroll v. Cal*. (1990) 217 Cal.App.3d 134, the case in which both parties rely on to analogize and distinguish the instant situation, the Court notes that not only had discovery been propounded and responded to in that matter, but the government entity trying to get dismissed provided the plaintiff with:

> a signed declaration of Dick Beckley, an associate transportation engineer with the right-of-way engineering section, department of transportation, district 8, San Bernardino, California. Beckley stated under penalty of perjury that the State did not have a proprietary interest in the intersection. His declaration further stated that the State was not a party to any contractual agreements related to the accident site, either at the time of the accident or when the declaration was signed, nor was the intersection under control or maintenance of the State.

(*Carroll v. Cal*. (1990) 217 Cal.App.3d 134, 139.)

Here, no such declaration was provided to Plaintiff by Defendant in Defendant's effort to get Plaintiff to dismiss this case. Instead, Defendant sent attorney-drafted emails demanding to be dismissed and declaring—not under oath—that Defendant did not own, control, or maintain the area at issue in this lawsuit. (See Cooper Decl., ¶¶ 1-12, Exhs. A-E.) This distinction is relevant, as it would have been tangible evidence from which to conclude that Defendant was not a proper party to the instant lawsuit.

Third, Defendant cites the *Carroll* case for the proposition that " 'At the minimum,' a plaintiff's counsel must 'have some articulable fact or facts to conclude that a particular person or entity should be initially included in the lawsuit as a party-defendant.' " (Reply, p. 5:4-6.) However, the issue in *Carroll* involved defense costs obtainable via Code of Civil Procedure section 1038, and this Motion is one for sanctions that has been brought pursuant to Code of Civil Procedure section 128.7. (*Carroll*, *supra*, 217 Cal.App.3d at 139.) Section 1038 deals with "whether or not the plaintiff, petitioner, cross-complainant, or intervenor brought the proceeding with reasonable cause and in the good faith belief that there was a justifiable controversy under the facts and law which warranted the filing of the complaint…" (Code of Civ. Proc., § 1038, subd. (a).) Section 128.7 deals with: (1) whether the claims are brought for an improper purpose, such as to harass or cause delay; (2) whether legal contentions are warranted by existing law or a nonfrivolous argument for an extension, modification, etc., of the law; and (3) whether the allegations have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (Code of Civ. Proc., § 128.7, subd. (b).) These are distinct standards and it is not clear that one can apply the standard applicable to Section 1038 to Section 128.7.

Finally, under Code of Civil Procedure section 128.7, "to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.' " (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205.) Here, plaintiff Pitts, an AC Transit driver, was allegedly injured at an AC Transit bus stop in a city within Contra Costa County. It cannot be said that any reasonable attorney would agree that suing the county in this situation for premises liability is *totally and completely without merit*. This also goes to subdivision (b)(3) of Section 128.7, which asks "whether the allegations have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery."

Ruling

For the reasons analyzed above, Defendant's motion for sanctions pursuant to Code of Civil Procedure section 128.7 is DENIED.

11. 9:00 AM CASE NUMBER: C25-03580
CASE NAME: BETTY VETRO, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, NICK VETRO VS. MARTINEZ SNF HEALTHCARE LLC
HEARING ON PETITION IN RE: BRING ELDER ABUSE ACTION IN THE NAME OF BETTY VETRO, DECEASED
FILED BY: VETRO, NICK
TENTATIVE RULING:*

Plaintiff Nick Vetro ("Plaintiff") filed a petition pursuant to Welfare and Institutions Code 15657.3(d) for leave to prosecute the Pending Action on December 17, 2025 (the "Petition"). The Petition was set for hearing on May 4, 2026. The Motion is unopposed.

Background

The Complaint herein was filed on December 4, 2025 by BETTY VETRO, by and through her successor-in-interest, NICK VETRO (the "Pending Action").

The Petition is supported by NICK VETRO's declaration pursuant to Code of Civil Procedure section 377.32 (the "Supporting Declaration"). See Motion, **Exhibit A**.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest**." See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id*.

The Supporting Declaration filed by the successor-in-interest here complies with those requirements and the Petition is unopposed.

Disposition

The Court finds and orders as follows:

1. The Petition is GRANTED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-03686
CASE NAME: SAUNDRA MARTINEZ VS. TAPPAN ZEE, ESQ.
HEARING IN RE: PETITION FILED 12/28/25
FILED BY: MARTINEZ, SAUNDRA N
TENTATIVE RULING:

Plaintiff Saundra N. Martinez ("Plaintiff") filed a petition on December 18, 2025 (the "Petition"). The Petition was set for hearing on May 4, 2026.

Background

The Petition herein seeks "an immediate order to quash and/or dismiss the current writ of execution issued by the Elk Grove Sherrif's Department Levy officer (Jim Cooper Sheriff)."

No proof of service is on file herein.

Analysis

It appears to the Court that this matter may involve proceedings in relation to another case in this Court or out-of-county litigation pending before another court. The Court is inclined to issue an order to show cause regarding dismissal of this case.

Disposition

The Court finds and orders as follows:

1. Plaintiff to APPEAR to address the pending Petition.

13. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO TO MEHRZAD AZARI**
FILED BY: GARAVENTA, SILVIO
****TENTATIVE RULING:****

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

14. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: REOPEN DISCOVERY AND/OR IN THE ALTERNATIVE, ALLOW PLAINTIFF TO SERVE TARDY EXPERT WITNESS DISCLOSURE**
FILED BY: GARAVENTA, SILVIO
****TENTATIVE RULING:****

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

15. 9:00 AM CASE NUMBER: MSC21-01086
CASE NAME: HERNANDEZ VS. AMERICAN AUTOMOBILE
***MOTION/PETITION TO COMPEL ARBITRATION RE: AMERICAN AUTOMOBILE ASSOCIATION OF NORTHERN CALIFORNIA, NEVADA & UTAH**
FILED BY: HERNANDEZ, ELIZABETH
****TENTATIVE RULING:****

The unopposed petition to confirm arbitration award filed December 17, 2025 is GRANTED. Moving party to submit form of order and judgment.

16. 9:00 AM CASE NUMBER: N25-2269
CASE NAME: PETITION OF: ELAINE LAVAN
***HEARING ON MOTION IN RE: FOR ORDER REQUIRING RESPONDANT TO PREPARE AND PROVIDE ADMINISTRATIVE RECORD W/O COST TO PETITIONER**
FILED BY: LAVAN, ELAINE
****TENTATIVE RULING:****

Petitioner Elaine La Van’s motion to require Respondent California State Approving Agency for Veterans Education to prepare the record is **DENIED.**

Petitioner requests that respondent California State Approving Agency for Veterans Education (CSAAVE) be ordered to prepare the administrative record in this case and provide a certified copy of the record to Petitioner at no cost, pursuant to Code of Civil Procedure section 1094.5.

The parties spend much of their briefing discussing whether this case is properly an administrative or traditional writ and the underlying merits. The Court does not need to reach these issues to rule on the motion presently before it.

Code of Civil Procedure section 1094.5 provides in relevant part: “Where the petitioner has proceeded pursuant to Article 6 (commencing with Section 68630) of Chapter 2 of Title 8 of the Government Code and the Rules of Court implementing that section [fee waiver] and where the transcript is necessary to a proper review of the administrative proceedings, the cost of preparing the transcript shall be borne by the respondent.”

Petitioner was granted a fee waiver on January 13, 2026. (January 13, 2026 minute order.) However, Petitioner has not shown that there is a hearing transcript available in this case.

Code of Civil Procedure section 1094.5 requires “the cost of preparing the *transcript* [to] be borne by the respondent” when the petitioner has a few waiver. A transcript has a specific meaning and is just one part of an administrative record. (See, e.g. Government Code section 11523 [in Administrative Procedure Act cases, “The complete record includes the pleadings, all notices and orders issued by the agency, any proposed decision by an administrative law judge, the final decision, a transcript of all proceedings, the exhibits admitted or rejected, the written evidence and any other papers in the case.”].)

In *Austin v. Valverde* (2012) 211 Cal.App.4th 546, the court held that the language in 1094.5 requires the respondent to prepare and provide a copy of the administrative transcript for free to an indigent petitioner. (*Id*. at 547.) *Austin* did not address whether a respondent must prepare documents outside of the hearing transcript when requested to do so by a petitioner with a fee waiver.

Petitioner also points to California Rules of court, rule 3.2225(c)(2), which she argues says that “For good cause, the court may order the respondent agency to pay for all or part of the cost of preparing the administrative record.” Petitioner did not correctly quote rule 3.2225. Rule 3.2225(b)(2) states that “On request and payment of the reasonable cost of preparation, or on order of the court for good cause shown, the lead agency shall provide a party with the record in paper format.” This rule of Court does not apply here. It is specific to California Environmental Quality Act cases and addresses providing a paper copy of the record.

Petitioner’s citation to *Rivas v. City of Kerman* (1992) 10 Cal.App.4th 1110 is misplaced. That case addressed whether Government Code section 825 required respondent to pay a stipulated judgment on behalf of a police officer that shot the deceased. It does not address the cost of record preparation.

In this case, the Court finds that Respondent CSAAVE would be required to prepare and pay for the hearing transcript, but there is no hearing transcript. Petitioner has not shown that a hearing transcript exists and Respondent argues that there was no hearing. Thus, the Court cannot order CSAAVE to prepare a transcript that does not exist.

Petitioner's motion sought to require Respondent to prepare the record, but at respondent's cost. Since the Court cannot require Respondent to pay for preparation of the record, it is unclear if Petitioner still wants to have Respondent prepare the record, which would be at her expense.

The Court sets a case management conference for June 25, 2026.

The parties shall meet and confer regarding preparation of the record in this case . Respondent shall provide an estimate of the costs associated with record preparation, if they have not already done so. The parties shall also discuss a deadline for preparation of the record. The parties are ordered to meet and confer by video conference or telephone no later than June 1, 2026.

Petitioner filed a supplemental declaration on April 9, 2026, addressing the merits of Petitioner's claims and appearing to challenge the Court's ruling on Petitioner's motion for a preliminary injunction. Respondent objected to that declaration. The Court considered Petitioner's supplemental declaration to see if it would address the issues regarding record preparation. To the extent Petitioner is requesting reconsideration of the Court's ruling on the motion for a preliminary injunction, a supplemental declaration is not the proper procedure for seeking reconsideration.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C24-02099
CASE NAME: DIANA BONNETT VS. NORCAL PRIME FOODS DISTRIBUTOR, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL POST JUDGMENT INTERROGATORIES, SET ONE**
FILED BY: BONNETT, DIANA
****TENTATIVE RULING:****

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

18. 9:01 AM CASE NUMBER: C24-02099
CASE NAME: DIANA BONNETT VS. NORCAL PRIME FOODS DISTRIBUTOR, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**
FILED BY: BONNETT, DIANA
****TENTATIVE RULING:****

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

19. 9:01 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM INTERROGATORIES, SET**

ONE
FILED BY: FULLER PROPERTIES, LLC
TENTATIVE RULING:*

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

20. 9:01 AM CASE NUMBER: C23-02013
CASE NAME: DENNIS SANFORD VS. CHANNEL LUMBER CO.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY BY GRS FUNDING, INC.**
FILED BY: CHANNEL LUMBER CO.
TENTATIVE RULING:*

The Court, sua sponte, continues this matter for hearing to May 11, 2026.

Law & Motion
Add On

21. 9:00 AM CASE NUMBER: C25-02242
CASE NAME: MECHANICS BANK VS. BHUPINDER LALLY
HEARING ON SUMMARY MOTION CONTINUED FROM 04.27.2026
FILED BY: MECHANICS BANK
TENTATIVE RULING:*

Introduction

Before the Court is Plaintiff Mechanics Bank's ("Plaintiff") Motion for Summary Judgment, or in the alternative, Summary Adjudication, ("MSJ"). The MSJ relates to Plaintiff's Complaint ("Complaint") alleging five causes of action relating to a $100,000.00 loan made to Defendants KTS Freight, Inc. and Bhupinder Lally on June 15, 2023.

Plaintiff moves this Court for summary judgment, or in the alternative, summary adjudication, on the grounds that there is no triable issue of material fact, and that Plaintiff is entitled to judgment as a matter of law.

The motion is based on the following grounds:

ISSUE ONE: The First Cause of Action for Breach of written Promissory Note has merit and must be judged in favor of the Bank and against Borrower;

ISSUE TWO: The Second Cause of Action for Breach of a written Business Loan Agreement has merit and must be adjudged in favor of the Bank and against Borrower;

ISSUE THREE: The Third Cause of Action for Breach of a written Commercial Guaranty has merit and must be adjudged in favor of the Bank and against Guarantor;

ISSUE FOUR: The Fourth Cause of Action for Breach of a written Commercial Security Agreement has merit and must be adjudged in favor of the Bank and against Borrower; and

ISSUE FIVE: The Fifth Cause of Action for common count has merit and must be adjudged in favor of the Bank and against Borrower and Guarantor.

For the following reasons, **Plaintiff's motion for summary judgment is GRANTED**.

Factual Background

On or about June 15, 2023, KTS Freight, Inc. (Borrower"), for valuable consideration, made, executed and delivered to Mechanics Bank (the "Bank") a written Promissory Note ("Note") in the original principal amount of One Hundred Thousand Dollars ($100,000.00. (UMF 1; Simons Decl.¶ 8, Ex. 1.)

The maturity date for the Promissory Note was extended to June 15, 2025. (UMF 2; Simons Decl.¶ 9, Ex. 2.)

The Promissory Note matured on June 15, 2025. (UMF 4.) Borrower is in default of the Promissory Note. (UMF 4.) Plaintiff made demand on Borrower, but Borrower has failed and refused to pay the amount due under the Promissory Note. (UMF 4; Simons Decl.¶ 11, Ex. 3.)

On June 15, 2023, Borrower made, executed, and delivered to Plaintiff a written Business Loan Agreement in the original principal amount of one hundred thousand dollars ($100,000.00). (UMF 13; Simons Decl.¶ 14, Ex. 4.) Borrower defaulted on the terms of its Business Loan Agreement.

On June 15, 2023, Bhupinder Lally ("Guarantor") made, executed, and delivered to the Bank a written Commercial Guaranty ("Guaranty") granting the Bank with a blanket security interest in all inventories, chattel paper, accounts, equipment and general intangibles of KTS Freight, Inc. (UMF 17; Simons Decl.¶ 18, Ex. 5.) Guarantor defaulted on the terms of the Guaranty. (UMF 19; Simons Decl.¶ 20.)

On June 15, 2023, Borrower made, executed, and delivered to Plaintiff a written Commercial Security Agreement. (UMF 20; Simons Decl.¶ 22, Ex. 5.) Plaintiff perfected its security interest by filing a UCC Statement with California's Secretary of State as Instrument No. U230043426024. (UMF 25; Simons Decl.¶ 22.)

The Note, Change in Terms Agreement, Business Loan Agreement, Guaranty, and Commercial Security Agreement are collectively referred to herein as the "Loan Documents." The Bank has fully performed all obligations under the terms of the Loan Documents. (UMF 29; Simons Decl.¶ 10.)

As of December 18, 2025, the amount owed is principal of $99,508.02, interest of $10,195.01, plus late charges $271.61, all according to the terms of the Loan Documents. Daily interest continues to accrue at the per diem rate of $45.61, until entry of judgment or payment in in full. (UMF 5, 16, 31; Simons Decl.¶¶ 12, 17.)

Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (Code Civ. Proc. § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

> A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . .' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable, supra,* 159 Cal.App.4th at 1483.)

Analysis

Breach of Contract Causes of Action

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiff argues four breach of written contract causes of action: (1) breach of the Promissory Note; (2) breach of the Business Loan Agreement; (3) breach of the Commercial Guaranty; and (4) breach of the Commercial Security Agreement. All four loans together are referred to as the Loan Documents.

Plaintiff's Initial Burden

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact…" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

1. Contract Existence

Promissory Note

The existence or formation of the Promissory Note between Plaintiff and Defendant/Borrower KTS

Freight is undisputed. (UMF 1.)

Business Loan Agreement

Defendants dispute the language, "in order to induce the Bank to grant the original credit" in referring to the language Plaintiff uses to describe the possible motive behind Borrower KTS Freight signing the Business Loan Agreement. (UMF 13.) This is not a dispute of material fact because this fact does not relate to any of the causes of action, claims for damages, issues of duty, or affirmative defenses that are the subject of the motion. (Cal. Rules of Court, rule 3.1350(a)(2); see also *Riverside County Cmty. Facilities Dist. v. Bainbridge 17* (1999) 77 Cal.App.4th 644, 653.) However, Defendants do not dispute the existence or formation of the Business Loan Agreement. The existence of the Business Loan Agreement between Plaintiff and Defendant/Borrower KTS Freight is undisputed. (UMF 13.)

Commercial Guaranty

Defendants dispute the language, "in order to induce the Bank to grant the original credit" in referring to the language Plaintiff uses to describe the possible motive behind Borrower KTS Freight signing the Commercial Guaranty. (UMF 17.) This is not a dispute of material fact because this fact does not relate to any of the causes of action, claims for damages, issues of duty, or affirmative defenses that are the subject of the motion. (Cal. Rules of Court, rule 3.1350(a)(2); see also *Riverside County Cmty. Facilities Dist. v. Bainbridge 17* (1999) 77 Cal.App.4th 644, 653.) However, Defendants do not dispute the existence or formation of the Commercial Guaranty. The existence of the Commercial Guaranty between Plaintiff, Defendant/Borrower KTS Freight, and Defendant/Guarantor Bhupinder Lally is undisputed. (UMF 17.)

Commercial Security Agreement

Defendants dispute the language, "in order to induce the Bank to grant the original credit" in referring to the language Plaintiff uses to describe the possible motive behind Borrower KTS Freight signing the Commercial Security Agreement. (UMF 20.) This is not a dispute of material fact because this fact does not relate to any of the causes of action, claims for damages, issues of duty, or affirmative defenses that are the subject of the motion. (Cal. Rules of Court, rule 3.1350(a)(2); see also *Riverside County Cmty. Facilities Dist. v. Bainbridge 17* (1999) 77 Cal.App.4th 644, 653.) However, Defendants do not dispute the existence or formation of the Commercial Security Agreement. The existence of the Commercial Security Agreement between Plaintiff, Defendant/Borrower KTS Freight is undisputed. (UMF 20.)

Change in Terms Agreement

The existence of the Change In Terms Agreement between Plaintiff and Defendant/Borrower KTS Freight, which extended the maturity date of the Loan Documents by one year, is undisputed. (UMF 2, 8, , 21, 28.)

2. Plaintiff's Performance

It is undisputed that Plaintiff performed all the conditions under the Promissory Note, Business Loan Agreement, Commercial Guaranty, and Commercial Security Agreement. (UMF 3, 9, 18, 22, 29.)

3. **Breach**

Plaintiff supports it position that Defendants breached with evidence set forth in the Declaration of Commercial Assets Officer Bert Simmons authenticating the Promissory Note, Business Loan Agreement, Commercial Guaranty and the Commercial Security Agreement. (UMF 1, 13, 17, 20.)

Promissory Note Breach

Commercial Officer Bert Simmons explains that the Promissory Note matured on June 15, 2025, and Defendant/Borrower KTS Freight has failed to pay the amount due after Plaintiff sent a written demand. (UMF 1, 2, 4.)

Business Loan Agreement Breach

Commercial Officer Bert Simmons explains that Defendant/Borrower KTS Freight defaulted on the terms of the Business Loan Agreement since the Promissory Note is integrated by reference in the Business Loan Agreement. (UMF 15; Simons Decl. ¶¶ 14-16, Ex 4, pp. 1, 6.)

Commercial Guaranty Breach

Commercial Officer Bert Simmons explains that Defendant/Borrower KTS Freight, and Defendant/Guarantor Bhupinder Lally defaulted on the terms of the Commercial Guaranty since the Promissory Note is integrated by reference in the Commercial Guaranty. (UMF 17-19; Simons Decl. ¶¶ 18-20, Ex 5, p. 4.)

Commercial Security Agreement Breach

Commercial Officer Bert Simmons explains that Defendant/Borrower KTS Freight defaulted on the terms of the Business Loan Agreement since the Promissory Note is integrated by reference in the Business Loan Agreement. (UMF 15; Simons Decl. ¶¶ 14-16, Ex 4, pp. 1, 6.)

4. **Damages**

It is undisputed Plaintiff suffered damages which as of December 18, 2025, is the principal amount of $99,508.02, interest of $10,195.01, plus late charges of $271.61, all according to the terms of the Promissory Note, plus daily interests that continues to accrue at the rate of $45.61 per diem, until entry of judgment or payment in full. (UMF 5, 11, 16, 31.)

Thus, Plaintiff has met his initial burden of proof by providing evidence of each element for breach of contract for each of the Loan Documents by evidence provided in the Declaration of Commercial Assets Officer Bert Simmons. The burden now shifts to Defendants to either show a dispute of material fact as to an element or to establish all the elements of a defense. In this motion the only element Defendants have placed in dispute is the breach element of the Promissory Note, Business Loan Agreement, Commercial Guaranty or Commercial Security Agreement.

Defendants' Dispute of Material Facts for Breach of Contract Causes of Action

Defendants present two arguments in support of the existence of a disputed material fact.

Ignorance of a Contract Term Does Not Negate an Element or a Defense

"A party's failure to read a contract, or to carefully read a contract, before signing it is no defense to the contract's enforcement". (*Desert Outdoor Advertising v. Superior Court* (2011) 196 Cal. App. 4th 866, 872.) "Ordinarily, one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it. If he cannot read, he should have it read or explained to him". (*Randas v. YMCA of Metropolitan Los Angeles* (1993) 17 Cal. App. 4th 158, 163; citing 1 Witkin, Summary of Cal. Law (9th ed. 1987) § 120, p. 145.)

The only separate statement that Defendant KTS Freight materially opposed was the material fact about the maturation of the note. Defendant KTS Freight disputes that the note matured and contends that the term should be like a credit card. (UMF 4.) Defendant KTS Freight's basis for their dispute is Defendant Bhupinder Lally's declaration where he claims that Plaintiff's agent Sunil Tumber suggested a line of credit and Defendant Lally understood that to mean all he would be required to do is make minimum payments until my business earned enough to pay off the balance. (Lally Decl. ¶¶ 3-5.)

The maturity date was clearly present on the first page of two of the Loan Documents, the Promissory Note and the Commercial Security Agreement. (Simons Decl. Ex. 1,6.) A year later, Defendants signed the Change In Terms Agreement which had the maturity date on the top of the document located in the same place as the Promissory Note and Commercial Security Agreement, and the single page Change In Terms Agreement contained a Maturity Date provision which explicitly stated that the maturity date was being extended from June 15, 2024 to June 15, 2025. (UMF 1, 2, 4.)

Defendants do not present material facts that might raise a triable issue as to assent to the maturity or payment terms such as an inability to read the terms, for any reason, at the time of the execution of any of the Loan Documents.

Defendants have failed to cite any authority in support of their position that their ignorance of a contract term in which they competently executed can serve to negate an element or provide a defense to a breach of contract cause of action. As a matter of law, Defendants' ignorance of the maturity date term of the Loan Agreements does not negate an element or provide a defense to a breach of contract cause of action. Nor have defendants properly shown that the maturity terms or other relevant payment terms were ambiguous and properly subject to their proffered interpretation by admissible parol evidence.

Defendants' Detrimental Reliance on Plaintiff's Agent Sunit Tumber is Not Reasonable

One party's misrepresentations as to the nature or character of the writing do not negate the other party's apparent manifestation of assent, if the second party had "reasonable opportunity to know of the character or essential terms of the proposed contract." (Rest.2d Contracts, § 163.) If a party, with such reasonable opportunity, fails to learn the nature of the document he or she signs, such negligence precludes a finding the contract is void for fraud in the execution. (*C. I. T. Corp. v. Panac* (1944) 25 Cal.2d 547, 549.)

The California Supreme Court emphasized that a party's unreasonable reliance on another's misrepresentations, resulting in a failure to read a written agreement, does not negate the party's apparent assent to the contract if they had a reasonable opportunity to know its terms. (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal. 4th 394, 423.)

Defendant Lally claims that if he was aware of the one-year maturity date, he would never have borrowed the funds for his business. (AUMF 34; Lally Decl. ¶ 7.) In their additional undisputed facts and in the Declaration of Defendant Bhupinder Lally, Defendants take the position that they relied on the representation by Plaintiff Mechanic Bank's agent Sunil Tumber's representation that the term of the loan documents would be a line of credit and not have a mature date. (AUMF 32-33; Lally Decl. ¶¶ 4-6.) Defendants also argue that they were never provided with copies of the Loan Documents before or after signing them. (AUMF 34; Lally Decl. ¶ 7.) The reasonability of Defendants' reliance of Plaintiff's agent's representations is brought into question.

The maturity date was clearly present on the first page of two of the Loan Documents, the Promissory Note and the Commercial Security Agreement. (Simons Decl. Ex. 1,6.) A year later, Defendants signed the Change In Terms Agreement which had the maturity date on the top of the document located in

the same place as the Promissory Note and Commercial Security Agreement, and the single page Change In Terms Agreement contained a Maturity Date provision which explicitly stated that the maturity date was being extended from June 15, 2024 to June 15, 2025. (UMF 1, 2, 4.)

Executing two documents in 2024 and one in 2025 that explicitly had a Maturity Date on the first page of the document makes Defendants' reliance on Plaintiff Mechanics Bank's agent Sunil Tumber's suggestion to take out a line of credit and that Defendant Lally's understanding that the line of credit would operate like a credit card unfounded and unreasonable.

Defendants' argument that they were never provided with copies of the Loan Documents before or after does not make their alleged detrimental reliance reasonable either. Defendants do not argue that they requested copies of the Loan Documents, or even that Plaintiff refused to provide copies of the Loan Documents. Defendants simply state that Plaintiff did not provide copies of the Loan Documents. Defendants did provide any facts that suggest that Plaintiff deprived Defendants a reasonable opportunity to know the terms of the Loan Documents.

In sum, Defendants have failed to adduce evidence that would allow a reasonable trier of fact to conclude that defendants did not have a reasonable opportunity to know of the character or essential terms of the proposed contract.

There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Defendants have failed to cite any authority in support of their position that their reliance of a representation of an agent that is directly in conflict with a later executed contract term can serve to negate an element or provide a defense to a breach of contract cause of action. As a matter of law, Defendants' unreasonable reliance does not negate an element or provide a defense to a breach of contract cause of action.

Thus, Defendants did not meet their burden to show a genuine dispute of material fact as to an element or to establish all the elements of a defense. Summary adjudication is granted as to the breach of contract causes of action one through four for the Promissory Note, Business Loan, Guarantor, or Commercial Security Agreement, collectively referred to as the Loan Documents.

Common Count

Plaintiff's fifth common count cause of action is based on "money had and received." A cause of action is stated for money had and received if the defendant is indebted to the plaintiff in a certain sum "for money had and received by the defendant for the use of the plaintiff." (*Gutierrez v. Girardi* (2011) 194 Cal. App. 4th 925, 937.) It lies wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter. (*Id*.)

It is undisputed that Defendants took out a loan or guaranteed such loan for $100,000.00 from Plaintiff and that the borrower actually received such monies. (UMF 1, 7, 27.)

It is undisputed that Plaintiff's loaned the money in exchange for repayment plus interest. (UMF 1, 7, 27.)

It is undisputed that Defendants have not paid Plaintiff back in full. (UMF 5, 11, 16, 31.)

Despite Defendants' dispute to separate statement number 30, Defendants' ignorance of a contract term or unreasonable reliance of a representation of an agent that is directly in conflict with a contract term later executed similarly does not negate any element of a common count cause of action for the same reasons discussed above. Defendants' contention that the Loan Documents did not mature and should have been like a credit card is not a genuine material dispute of the indebtedness because no reasonable trier of fact could conclude, based on the proffered evidence, that defendants were ignorant of the agreed upon repayment terms .

Conclusion

For the reasons set forth above, Plaintiff's motion for summary judgment is **GRANTED**.